

24STCV24937 24STCV24937

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 24STCV24937 Hearing Date: August 4, 2026 Dept: 408

Plaintiff M.O.S.' Motion for Leave to File Second Amended

Complaint is GRANTED.

I.

BACKGROUND

On September 25, 2024, Plaintiff

M.O.S., a minor by and through his guardian

ad litem, Moieshai Carter ("Plaintiff") filed a complaint against Defendant Los

Angeles Unified School District ("Defendant") alleging causes of action for:

1. Negligence, Negligent Hiring,

Training, Retention, and/or Supervision of Unfit Employees;

2. Intentional Infliction of

Emotional Distress;

3. Breach of Mandatory Statutory

Duties Which Proximately Caused Plaintiff's Sexual Assault and Battery; and

4. Breach of Mandatory Statutory

Duties Which Proximately Caused Plaintiff Additional Damages Separate and

Distinct From His Sexual Assault And Batter.

On February 13, 2025, the court

granted Defendant's Motion to Strike portions of Plaintiff's complaint with

leave to amend.

On February 24, 2025, Plaintiff filed a First Amended Complaint ("FAC").

On March 26, 2025, Defendant filed an answer to Plaintiff's FAC.

On June 5, 2026, Plaintiff filed this Motion for Leave to File a Second Amended Complaint. On July 22, 2026, Defendant filed an opposition. On July 28, 2026, Plaintiff filed a reply.

II.

LEGAL

STANDARD

Under Code of Civil Procedure section 473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 [internal citations omitted].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend[.]" (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, Rule 3.1324, subd. (a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, Rule 3.1324, subd. (a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier

must also accompany the motion. (Cal. Rules of Court, Rule 3.1324, subd.

(b).)¿¿¿¿

III.

DISCUSSION

Plaintiff seeks leave to file a second amended complaint to include additional causes of action under Title IX of the Education Amendments of 1972; 42 U.S.C. § 1983; Section 504 of the Rehabilitation Act; Title II of the Americans with Disabilities Act; standalone retaliation; sexual battery under California Civil Code section 1708.5; and violations of the California Education Code, along with a prayer for punitive damages against individual defendants. (Motion, at p. 3.) Plaintiff argues that leave to amend is to be liberally granted and there will be no prejudice to Defendant as the proposed amendments arise from the same facts at issue. (Id., at pp. 5-7.)

In opposition, Defendant argues that amendment would be fatal as Plaintiff seeks to add punitive damages allegations and the new causes of action without meeting the Government Claims Act claim presentation requirement set forth in Government Code section 911.2. (Opp., at p. 2.) Defendant also argues that allowing amendment will further complicate the issues, unnecessarily delay this action, and unduly prejudice Defendant in that it will necessitate the filing of a Demurrer and Motion to Strike followed by new discovery. (Ibid.)

The court finds that Plaintiff complies with the requirements of¿Rule 3.1324 by providing a copy of the proposed second amended complaint, identifying the changes to be made, and a supporting declaration stating why the amendment is necessary. (Diggs Decl., ¶¶ 2-7, Exh. A.) The court also finds that any prejudice to Defendant would be minimal as there is ample time to contest the amended pleading to raise any dispositive arguments as to the new causes of action asserted.

Accordingly, the motion is granted.

IV.

CONCLUSION

Plaintiff M.O.S.' Motion for Leave to File Second Amended
Complaint is GRANTED.